RABBI BINYAMIN GOLDBERG

Hilchos Shabbos Shiur 10

Shiur

10

הלכות שבת · אורח חיים סימן רנ"א

Mareh Makomos for this shiur

Siman 251 – Mechaber, Rama

Magen Avraham 1 – 6

Taz 1 – 2

Mishna Berura 1 – 9

Biur Halacha ד"ה העושה מלאכה, ד"ה ויש מפרשים, ד"ה לתקן בגדיו, ד"ה ואינו נוטל, ד"ה ומסתפרין, ד"ה ויש לאדם

Gemora Pesachim 50a – b, Shabbos 35b

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Melacha on Erev Shabbos Afternoon

Simon 251

Seif 1 סעיף א

BASIS OF THIS SEIF Erev Shabbos

– Work on Erev Shabbos from *mincha* onward will not see blessing (the seif); casual work is permitted (Rama); business is permitted (MA 1; MB 1).

Melacha: Here "*melacha*" means one's regular weekday work on Friday afternoon, not a Shabbos prohibition.

The Source

HALACHA 251:1

The Mishna (Pesachim 50a) teaches that in a place where the custom is to do melacha on Erev Pesach until midday, one may do so. The Gemora (50b) asks: why mention Erev Pesach specifically? Even Erev Shabbos has a similar rule, as a Baraisa teaches: "One who does melacha on Erev Shabbos and Erev Yom Tov from *mincha* onward will never see a sign of blessing." The Gemora gives two answers:

1. There (Erev Shabbos) it is forbidden only from *mincha* onward, not close to *mincha*. Here (Erev Pesach) it is forbidden from midday.
2. There, he does not see a sign of blessing, but he is not put in *cherem*. Here, he is also put in *cherem*.

Is It Forbidden?

The **Magen Avraham** (2), from the Smag, writes that we stop him but do not punish him. The **Biur Halacha** (ד"ה העושה מלאכה) writes that there is a real prohibition here, only not as severe as other rabbinic prohibitions for which one receives *makas mardus*. So writes the Rambam (as the Biur Halacha cites him, in Hilchos Yom Tov perek 8), the Smag and the Or Zarua. The source is the first answer in the Gemora, which uses the word "forbidden." Even according to the second answer, only *cherem* is excluded, but there is still a prohibition (Ran, Pri Megadim).

The **Taz** (1), however, holds there is no prohibition at all, only the loss of blessing. According to him, the two answers disagree, and we follow the lenient view in a rabbinic matter, especially as it is the second answer. Or perhaps even the first answer's "forbidden" means only that the Chachamim are not pleased with it. The Biur Halacha wonders why the Taz did not mention the Rambam and the other Poskim.

A Sign of Blessing

He will not see blessing **3)** from that melacha: even if he earns from it here, he will lose elsewhere (MA 3, MB 2).

Business and Closing Stores

The **Magen Avraham** (1) writes that **1)** business (*perakmatya*) is not melacha and is permitted. He proves this from the Gemora's story of the people of Bishan, and from the end of the second perek of Shabbos (35b), where the second shofar blast was to stop the city and its stores. The **Mishna Berura** (1) adds that the Gemora implies the time for closing stores is before the time of lighting candles (see siman 256).

The **Biur Halacha** (ד"ה העושה מלאכה) brings that other Acharonim (Tosefos Shabbos and others) disagree with the Magen Avraham, with proofs. The Pri Megadim explains the Magen Avraham's intent: business need not be stopped from *mincha gedola*, but from *mincha ketana* it is like other melacha, as the Magen Avraham himself writes (4) that the second blast was at *mincha ketana*. The Machatzis HaShekel also implies that for closing stores the time is the same as other melachos, though he is lenient for business done privately.

The Biur Halacha concludes that people are lenient about closing stores, and it seems they rely on the Taz, who holds there is no prohibition at all.

Mincha Gedola or Mincha Ketana

Mincha gedola **4)** is six and a half hours, and *mincha ketana* is nine and a half hours, in *sha'os zmaniyos*. One who relies on the lenient view does not lose (MB 3).

The Magen Avraham's Proof

The **Magen Avraham** (4) asks on the view of *mincha gedola*: the Gemora (Shabbos 35b) says the second shofar blast was to stop the city from melacha and to close its stores. The Tur (256) writes that the first blast was at *mincha*. Even if the first blast was at *mincha gedola*, the second was much later, so people were working after *mincha gedola*. Therefore he holds like the view of *mincha ketana*.

The Magen Avraham also discusses the Yerushalmi brought in Choshen Mishpat 331: a worker must work for his employer until close to sunset, leaving enough time to fill a barrel of water, roast a small fish and light a candle (the third blast). Yet the Gemora says that at the first blast those in the fields came in. He suggests that the Yerushalmi describes the strict law of the worker's obligation, but since he will not see blessing, Chazal instituted the blasts so that people would stop.

The **Mishna Berura** (3) concludes that all this refers to one working for himself. A worker hired by an employer without specification must work until close to sunset, leaving time to go home and do those things, unless there is a fixed custom to stop earlier (Choshen Mishpat 331).

Rashi's Approach – the Taz

The **Taz** (1) discusses Rashi in Pesachim, who explains "*mincha*" for Erev Shabbos as nine and a half hours (*mincha ketana*). This raises a difficulty: if Erev Pesach is from midday and Erev Shabbos only from *mincha ketana*, there is a large difference, so why would the Gemora initially ask to compare them? And why did the answer need to say "close to *mincha* is permitted"?

The Taz explains that the questioner did not want to put them together under one measure. He asked why the Mishna mentions only midday, which is the din of Erev Pesach alone, rather than each with its own measure. The Gemora answered that the measures are not the same in kind: for Erev Shabbos, whose measure is *mincha ketana*, close to it is permitted. For Erev Pesach, even close to the measure is forbidden – from midday, which is close to *mincha gedola* at six and a half hours. The Maharam (in the Mordechai) and the Tur explain that the measure on Erev Shabbos too is *mincha gedola*, and Erev Pesach is stricter in forbidding even close to it.

The Taz concludes: since there is no prohibition here, only the lack of blessing, one who relies on Rashi does not, Heaven forbid, lose the blessing.

In Our Times

The **Biur Halacha** (ד"ה ויש מפרשים) notes that from the Magen Avraham it appears field workers must stop at *mincha gedola*, explaining the Rambam's statement that the first blast, for the workers, was at *mincha*. Nowadays

this is not the practice. Perhaps the reason for stopping was so that they would come into the city and prepare for Shabbos, while nowadays each worker's household prepares for Shabbos. This is similar to what Chazal said, that when there is a death in the city, all are forbidden in melacha, which the Poskim explain was so that they would take care of the deceased's needs. Where there are special groups for the needs of the dead, all are permitted.

Nevertheless, every G-d-fearing person should stop his field work at least at *mincha ketana*, unless it is a *davar ha'aved*, which is no stricter than Chol HaMoed. Many are stringent even with work at home.

Casual Melacha

Casual melacha **5)** is permitted even for payment (MB 4).

The **Biur Halacha** (ד"ה אגרת שלומים) writes that the Rama could have given a greater example: even soaking ink and dyes, or trapping animals and birds – which are certainly forbidden on Chol HaMoed when not for the needs of the festival – are permitted on Erev Shabbos, as is evident from the Or Zarua, the source of this din.

The Biur Halacha (ד"ה העושה מלאכה) adds that the Or Zarua proves this from the Mishna that permits soaking ink on Erev Shabbos at nightfall, and the like. According to the Or Zarua, the prohibition applies only when he does melacha in a fixed way, to earn from it.

SHULCHAN ARUCH & MEFORSHIM

שלא לעשות מלאכה בערב שבת מן המנחה ולמעלה. ובו ב סעיפים

העושה מלאכה בערב שבת מן המנחה ולמעלה אינו רואה סימן ברכה; יש מפרשים: מנחה גדולה, ויש מפרשים: מנחה קטנה:

הגה ודוקא כשעושה מלאכה דרך קבע, אבל אם עושה אותה דרך עראי, לפי שעה, ולא קבע עליה, שרי (ב"י בשם א"ז). ולכן מותר לכתוב אגרת שלומים וכל כיוצא בזה (ד"ע):

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1 One who does 1) melacha on Erev Shabbos 2) from mincha onward will not see 3) a sign of blessing. Some explain this as 4) mincha gedola, and some explain it as mincha ketana.

RAMA *This applies only when he does melacha in a fixed way. But if he does it* **5)** *casually, temporarily, without making it fixed, it is permitted* [Bais Yosef in the name of the Or Zarua]. *Therefore it is permitted to write a letter of greeting and anything similar.*

COMMENTARIES, IN ORDER OF THE TEXT

One who does melacha **העושה מלאכה בערב שבת מן המנחה ולמעלה אינו**

MAGEN AVRAHAM 1 **מגן אברהם (א)**

העושה מלאכה. אבל פרקמטיא שרי וכ"מ בגמ' בעובדא דבני בישן וכ"מ ספ"ב דשבת דתקיעה שניה היה לבטל העיר וחניותי':

One who does melacha. But business is permitted. So it is implied in the Gemara in the incident of the people of Baishan; and so it is implied at the end of perek 2 of Shabbos, that the second blast was to make the city and its shops cease.

PRI MEGADIM (ESHEL AVRAHAM) 1 on Magen Avraham 1 **פרי מגדים – אשל אברהם (א)**

העושה עמ"א פסחים נו"ן ב' בני ביישן לא הוה אזלי מצוד לצידון בע"ש ומשמע דאחר חצות היה יומא דשוקא ג"כ כפירש"י שבת י"ט א' מצוד לצידון מהלך יום א' יע"ש ומ"ש להבטל העיר וחניותיה שבת ל"ה ב' ובאות ד' הביא פירש"י דעיר ממלאכ"ה וחניותיה פרקמטיא

One who does – on the Magen Avraham. Pesachim 50b: the people of Baishan would not go from Tzor to Tzidon on Erev Shabbos; and it is implied that after midday was also a market day; as Rashi explained, Shabbos 19a: from Tzor to Tzidon is one day's journey; see there. What he wrote, "to make the city and its shops cease" – Shabbos 35b; and in os 4 he brought Rashi's explanation, that "the city" [ceases] from melacha and "its shops" from business.

י"ל דודאי לדעת הטור דמ"ג קאמר ע"כ אין סובר כפירש"י רק העיר וחניותיה היינו מקח וממכר ובברייתא דבי ר"י שנייה עדיין חניות פתוחות משמע להבטל העיר ממלאכה היה בתקיעה אחת א"כ מוכח דפרקמטיא שרי אחר מ"ג עכ"פ דהיינו שש ומחצה אבל ל"א מ"ק א"כ ראשונה היתה במ"ק שנייה אח"כ להבטל עיר ממלאכה וחניותיה א"כ שוין המה מלאכה בע"ר ופרקמטיא ובא"ר אות ו' ותו"ש וח"מ הקשו עליו ולמ"ש א"ש ועמ"ש בוית די מזה:

One can say that certainly according to the Tur's opinion, who says *mincha gedola*, necessarily he does not hold like Rashi's explanation, but "the city and its shops" means buying and selling; and in the Baraisa of the house of ר"י, [it says] at the second [blast] "the shops are still open," implying that making the city cease from melacha was at one blast. If so, it is proven that business is permitted after *mincha gedola* at least, that is, six and a half. But according to the "some say," *mincha ketana*, the first [blast] was at *mincha ketana* and the second afterward, to make the city cease from melacha and its shops; if so, melacha in the city and business are equal. The Eliyahu Rabba, os 6, the Tosefos Shabbos and ח"מ asked on him; according to what I wrote it fits well. See what I wrote in os 4 on this.

MAGEN AVRAHAM 2 **מגן אברהם (ב)**

מן המנחה ולמעל'. ומונעין אותו אבל אין עונשין אותו (סמ"ג):

From Mincha onward. They prevent him, but they do not punish him (Semag).

PRI MEGADIM (ESHEL AVRAHAM) 2 on Magen Avraham 2 **פרי מגדים – אשל אברהם (ב)**

מן המנחה עמ"א דמונעין אותו בע"כ ועמ"ש בט"ז מזה דאיסורא נמי איכא אלא דאין משמתין אותו ועיין ר"ן פסחים שם ואין מכין אותו מכת מרדות:

From Mincha – on the Magen Avraham. That they prevent him against his will. See what I wrote on the Taz on this: there is also a prohibition, only that they do not place him in *shamta*. See the Ran, Pesachim there; and they do not give him *makas mardus*.

סימן ברכה; יש מפרשים

Some explain mincha gedola

MAGEN AVRAHAM 3 **מגן אברהם (ג)**

סי' ברכה. מאותה מלאכה:

A sign of blessing. From that melacha.

PRI MEGADIM (ESHEL AVRAHAM) 3 on Magen Avraham 3 **פרי מגדים – אשל אברהם (ג)**

סימן ברכה מאותה מלאכה ס"ב דומיא דהמצפה לשכר אשתו כו' פסחים שם והמחבר השמיט מלת לעולם ולבוש הביאו ופירושו מאותה ברכה לעולם ועס"י תרצ"ו ס"א יע"ש:

A sign of blessing – from that melacha. ס"ב, like "one who looks to his wife's earnings etc.," Pesachim there. The Mechaber omitted the word "ever"; the Levush brought it, and its explanation is: [he will never see blessing] from that blessing. And see siman 696:1; see there.

MAGEN AVRAHAM 4 **מגן אברהם (ד)**

מנחה גדולה. היינו בשש ומחצה וצ"ע דאמרי' בגמ' דף ל"ה תקיעה שניה היתה להבטיל העיר (ממלאכה) וחניותיה, והטור כתב סי' רנ"ו תקיעה ראשונה היתה במנחה ואפי' את"ל דהיתה במנחה גדולה מ"מ שניה היתה הרבה אחר מנחה גדולה ש"מ שהיו עושין אח"כ

Mincha gedola. That is, at six and a half [hours]. This requires study, for we say in the Gemara, daf 35, that the second blast was to make the city cease (from melacha) and its shops; and the Tur wrote in siman 256 that the first blast was at Mincha. Even if you say it was at *mincha gedola*, nevertheless the second was well after *mincha gedola*; this shows that they worked afterward.

וע"ק דבח"מ סימן של"א כתב בשם ירושלמי דפועל צריך לעשות אצל ב"ה עד סמוך לשקיעת החמה שיוכל לצלות לו דג קטן והיינו תקיעה שלישית ומשמע התם דצריך לעשות בשדה עד זמן הזה ובגמ' אמרינן דבתקיעה ראשונה נכנסו אותן שבשדות

It is further difficult: in Choshen Mishpat siman 331 he wrote in the name of the Yerushalmi that a worker must work for the employer until close to sunset, [leaving time] so that he can roast himself a small fish – that is, the third blast; and it is implied there that he must work in the field until this time. Yet in the Gemara we say that at the first blast those in the fields came in.

ואפשר לומר דהירוש' מדינא קאמר דפועל צריך לעשות אבל אינו רואה סימן ברכה לכן תקנו חכמים תקיעות שיתבטלו אח"כ ומ"מ קושיא ראשונה במקומה עומדת מ"ד מנחה גדולה לכן נ"ל כמ"ד מנחה קטנה:

> One can say that the Yerushalmi speaks by law – that the worker must work – but he does not see a sign of blessing; therefore the Chachamim enacted blasts, so that they would stop afterward. Nevertheless, the first question remains in place against the one who says *mincha gedola*. Therefore it seems to me [that the halacha is] like the one who says *mincha ketana*.

PRI MEGADIM (ESHEL AVRAHAM) 4 on Magen Avraham 4 **פרי מגדים – אשל אברהם (ד)**

מנחה גדולה עמ"א כ"ה לשון הטור דהיינו משש ומחצה ובט"ז כתבנו שזה לת' קמא יע"ש והקשה על הטור מדידיה אדידיה דכאן הסכים דמ"ג וברנ"ו כתב תקיעה א' בזמן מנחה דא"נ מ"ג שנייה אח"כ א"כ עושין מלאכה אחר מ"ג

> **Mincha gedola – on the Magen Avraham.** So is the language of the Tur, that is, from six and a half; and on the Taz we wrote that this is according to the first answer; see there. He asked on the Tur, [contrasting] his own words with his own words: here he agreed [to] *mincha gedola*, and in 256 he wrote that the first blast was at the time of Mincha – [so] even if [it is] *mincha gedola*, the second was afterward; if so, they did melacha after *mincha gedola*.

ואף שהטור הביא ברייתא שנייה דבי ר"י ועדיין חניות פתוחות משמע ליה דל"פ על ברייתא להבטיל הע"ר היינו ממלאכה כפירש"י שם ולכן הכריע כדיעה שנייה עד מ"ק אבל בלבוש וב"ח פסקו להחמיר מ"ג ועט"ז בזה והט"ז הסכים כמ"א:

> Even though the Tur brought the second Baraisa, of the house of ר"י, "and the shops are still open," it was implied to him that it does not disagree with the Baraisa "to make the city cease," that is, from melacha, as Rashi explained there. Therefore he decided like the second opinion, until *mincha ketana*. But the Levush and the Bach ruled stringently, *mincha gedola*; and see the Taz on this. The Taz agreed with the Magen Avraham.

RABBI AKIVA EIGER on Magen Avraham 4 **רבי עקיבא איגר**

מג"א ס"ק ד' דבח"מ סי' של"א כ'. בשם הירושלמי:

> **Magen Avraham s"k 4: "For in Choshen Mishpat siman 331 he wrote."** [Add:] "In the name of the Yerushalmi."

TAZ 1 **ט"ז (א)**

י"מ מנחה גדולה. בפ' מקום שנהגו איתא מקום שנהגו לעשות מלאכה בע"פ עד חצות עושין ופרכי' מאי אריא ע"פ אפי' ע"ש נמי דתניא העושה מלאכה בע"ש ובעי"ט מן המנחה ולמעלה אינו רואה סימן ברכה לעולם ופרש"י מאי אריא ע"פ דקתני עד חצות במנהגא מכלל דמחצות ולהלן אסור ל"ל למתני חצות לאשמועינן הך דיוקא הא כל ערב י"ט אסירי התם מן המנחה ולמעלה הוא דאסור סמוך למנחה לא הכא מחצות א"נ התם סי' ברכה הוא דלא חזי אבל שמותי לא משמתי' ליה הכא שמותי נמי משמתי' ליה ופרש"י התם מן המנחה ט' שעות ומחצה.

> **Some explain mincha gedola.** In perek Makom Shenahagu it is stated: "In a place where they were accustomed to do melacha on Erev Pesach until midday, they do." It asks: why specifically Erev Pesach? Even Erev Shabbos too – as it was taught: "One who does melacha on Erev Shabbos and Erev Yom Tov from Mincha onward never sees a sign of blessing." Rashi explained: why specifically Erev Pesach, which is taught "until midday" as a custom, implying that from midday on it is forbidden – why did he need to teach "midday" to inform us of this inference? Every Erev Yom Tov is forbidden! [It answers:] There, from Mincha onward it is forbidden, [but] close to Mincha not; here, from midday. Alternatively: there, it is [only] a sign of blessing that he does not see, but they do not place him in *shamta*; here, they also place him in *shamta*. Rashi explained: there, "from Mincha" – nine and a half hours.

ואיכא למידק לפרש"י דיש חילוק גדול דבע"פ אסור מחצות דהוא אחר ו' שעות ובע"ש אין איסור אלא ממנחה קטנה א"כ מאי פריך המקשן אע"כ דהיה סובר דגם בשבת הוה השיעור ממנחה גדולה ולמה לא נימא כן בתרצן ותו קשה טובא למה הוצרך התרצן לומר הא סמוך למנחה שרי דסמוך מאן דכר שמים

> One can be precise according to Rashi: there is a big difference – on Erev Pesach it is forbidden from midday, which is after six hours, and on Erev Shabbos there is a prohibition only from *mincha ketana*. If so, what did the questioner ask? Necessarily he held that on Shabbos too the measure was from *mincha gedola*; so why not say so in [the words of] the answerer? It is further very difficult: why did the answerer need to say, "but close to Mincha it is permitted" – who mentioned "close"?

ונלע"ד דרש"י גילה כוונת פי' במ"ש בדברי המקשן ל"ל למתני חצות דלא בעי לאקשוי ליתני ע"ש בהדי ע"פ בחדא מחתא בחדא שיעורא דודאי בע"ש שיעור שלה מנחה קטנה ובע"פ עד חצות אלא דפריך ליתני כלא' לפי שיעורו דהיינו בזה חצות ובזה מ"ק למה כלל התנא דוק' חצות דהיינו דין ע"פ בלבד ומשני דאין השיעורים שוין דבע"ש דשיעורו מ"ק שם הדין דוקא מ"ק הא סמוך שרי ובע"פ גם

סמוך אסור דמחצות שהוא אחר ו' שעות אסור דהיינו סמוך למ"ג שהוא ו' ומחצה ואי הוי תנא לי' במשנ' ה"א דגם בע"ש יש איסור בסמוך כנלע"ד ברור ונכון דעת רש"י וא"צ להגהת רש"ל שם בח"ש

> It seems to my humble opinion that Rashi revealed the intent of his explanation in what he wrote in the questioner's words, "why did he need to teach midday": he did not mean to ask, "let it teach Erev Shabbos together with Erev Pesach in one category, with one measure," since certainly on Erev Shabbos its measure is *mincha ketana*, and on Erev Pesach until midday. Rather, he asks: let it teach both, each according to its measure – that is, for this one midday and for that one *mincha ketana*; why did the Tanna include specifically midday, which is the law of Erev Pesach alone? It answers that the measures are not equal: on Erev Shabbos, whose measure is *mincha ketana*, the law is specifically *mincha ketana*, but close [to it] is permitted; and on Erev Pesach even close is forbidden, since from midday, which is after six hours, it is forbidden – that is, close to *mincha gedola*, which is six and a half. If it had been taught in the Mishna, I would have said that on Erev Shabbos too there is a prohibition [when it is] close. This seems to my humble opinion clear and correct as Rashi's opinion, and the emendation of the Maharshal there in the Chochmas Shlomo is unnecessary.

אבל מהר"ם במרדכי והטור פי' דגם בע"ש היה השיעור מ"ג דהיינו ו' ומחצה והחמירו בע"פ טפי לענין סמוך דבע"פ אפי' סמוך אסור דהיינו מחצות ולמטה ודרך זה ודאי הוא נכון ופשוט לפי פשיטת התלמוד אלא דנראה דרש"י לא רצה לפרש כן דהא בפרק ע"פ מייתי ג"כ בע"ש ועי"ט לענין אכיל' מן המנח' ולמעלה ומירי ממ"ק ומסתמא גם בענין מלאכה הוה כן והביא ב"י דעת סמ"ג ומהרא"מ כ"כ בשם רש"י כנ"ל טעם פלוגת' זו. ולענין הלכה כיון דאין כאן איסור אלא להיות' דאין בו סימן ברכה הסומך על רש"י לא הפסיד הברכה ח"ו:

> But the Maharam in the Mordechai and the Tur explained that on Erev Shabbos too the measure was *mincha gedola*, that is, six and a half; and they were more stringent on Erev Pesach regarding "close," since on Erev Pesach even close is forbidden, that is, from midday on. This way is certainly correct and simple according to the plain sense of the Talmud. But it appears that Rashi did not want to explain so, since in perek Arvei Pesachim it also brings Erev Shabbos and Erev Yom Tov regarding eating from Mincha onward, and that speaks of *mincha ketana*; presumably regarding melacha too it is so. The Bais Yosef brought the opinion of the Semag, and the מהרא"מ wrote so in the name of Rashi. So [it seems to me] is the reason for this dispute. Regarding the halacha, since there is no prohibition here, only that there is no sign of blessing in it, one who relies on Rashi has not lost the blessing, Heaven forbid.

PRI MEGADIM (MISHBETZOS ZAHAV) 1 on Taz 1 **פרי מגדים – משבצות זהב (א)**

י"א מנחה גדולה עט"ז במקום שנהגו דף נו"ן ב' מאי איריא ע"פ כו' כפירש"י וכמ"ש הב"ח דמדתנן עד חצות לא שמעינן לאחר חצות אסור ליתני סתמא מקום שנהגו לעשות בע"פ עושין וידעינן דעד חצות דלאחר חצות בע"ט וע"ש נמי אסור ומדלא תנן בשום מקום במשנה דין זה ש"מ דפשוט הוא יע"ש בב"ח ומשני כו'

> **Some say mincha gedola – on the Taz.** In [perek] Makom Shenahagu, daf 50b: "why specifically Erev Pesach etc.," as Rashi explained, and as the Bach wrote: from what we learned, "until midday," we did not need to hear that after midday it is forbidden – let it teach without qualification, "a place where they were accustomed to work on Erev Pesach, they work," and we would know [it means] until midday, since after midday on Erev Yom Tov and Erev Shabbos it is also forbidden; and since this law is not taught anywhere in the Mishna, this shows that it is obvious; see there in the Bach. And it answers etc.

ולפי הטור הוא כפשוטו דאשמעי' עד חצות הא לאחר חצות מיד אסור בע"פ הא בע"ש וי"ט משש ומחצה אסור ולגי' הב"י ברש"י ט' שעות התרצן משני דלא כסברת המקשן אלא התם ממנחה ולמעלה היינו קטנה מט' ולמעלה אסור הא סמוך קודם לכן כפירש"י היינו קודם ט' שרי (ומש"ה פירש"י כן דל"ת סמוך ח"ש) וז"א לגירסא זו דגם בע"ש וי"ט סמוך ח"ש אסור דאין חילוק בין ע"פ לע"ש לענין סמוך דכל שאסרו בזמן מנחה יהיה קטנה או גדולה סמוך לה ח"ש הוה כזמנה ממש לכן פירש"י סמוך קודם לכן היינו מו' עד ט'

> According to the Tur it is as its plain meaning: it teaches us "until midday" – but immediately after midday it is forbidden on Erev Pesach, while on Erev Shabbos and Yom Tov it is forbidden from six and a half. According to the Bais Yosef's version of Rashi, "nine hours," the answerer answers not according to the questioner's reasoning, but: there, from Mincha onward – that is, *ketana* – from nine onward it is forbidden; but close, before that, as Rashi explained – that is, before nine – it is permitted. (Therefore Rashi explained so, lest you say "close" [means] half an hour.) This [reading] does not work according to this version, since on Erev Shabbos and Yom Tov too, half an hour close is forbidden, as there is no difference between Erev Pesach and Erev Shabbos regarding "close": whatever they forbade at the time of Mincha, whether *ketana* or *gedola*, half an hour close to it is like its actual time. Therefore Rashi explained "close, before that," that is, from six until nine.

והוכחת רש"י דאלו מנחה גדולה קאמר היה לומר בברייתא ג"כ ע"ש וי"ט מחצות אסור (כלומר ודאי סמוך חצי שעה כזמנה דמי בכל מקום והיה להו לחז"ל לומר שאין רואה סימן ברכה מחצות בע"ש) ש"מ דאה"נ אלא הפרש רב ביניהם זה משש מיד בע"פ וזה בע"ש מט' מיד כסתם מנחה היינו קטנה דזהו עיקר שיעורא (עסי' רל"ג)

Rashi's proof: if it said *mincha gedola*, it should have said in the Baraisa too, "on Erev Shabbos and Yom Tov, from midday it is forbidden" (that is, certainly half an hour close is like its time everywhere, and Chazal should have said that he does not see a sign of blessing from midday on Erev Shabbos). This shows that indeed [so]; rather, there is a great difference between them: this one immediately from six, on Erev Pesach, and this one on Erev Shabbos immediately from nine, like unqualified "Mincha," that is, *ketana*, which is the main measure (see siman 233).

אבל לא רצה לומר כרא"ם דא"כ לא הול"ל הכא מחצות אלא הכא סמוך למנחה נמי דכפירש"י יותר הלשון דחוק דסמוך למנחה מאן דכר שמיה הילי"ל התם ממנחה ולמעלה דהיינו מט' הכא מחצות מש"ה פירש הב"י כאן

But he did not want to say like the Re'em, for if so, it should not have said, "here, from midday," but "here, close to Mincha too"; for according to Rashi's explanation the language is more forced – who mentioned "close to Mincha"? It should have said, "there, from Mincha onward," that is, from nine; "here, from midday." Therefore the Bais Yosef explained here [so].

אבל הרא"ם ז"ל גורס ברש"י מט' ומחצה סמוך למנחה דהיינו מתחלת תשע (וכ"ה הגי' ברש"י אצל הרי"ף יע"ש) וא"ש אלו התם סמוך למנחה מט' ולמעלה ג"כ שרי ואלו כאן אף מחצות אסור והוכחת רש"י דאי תרוייהו מנחה גדולה לא הול"ל הכא חצות אלא הכא סמוך נמי כו' יע"ש בב"י

But the Re'em (z"l) reads in Rashi: "from nine and a half; close to Mincha – that is, from the beginning of nine" (and so is the version in Rashi on the Rif; see there). It fits well: there, close to Mincha, from nine onward, is also permitted, while here even from midday it is forbidden. Rashi's proof: if both were *mincha gedola*, it should not have said "here, midday," but "here, close too etc."; see there in the Bais Yosef.

והט"ז לא הונח לו אף גי' רא"ם דלמה מזכיר סמוך לישנא יתירא דאין שייך לתירוץ כ"א התם ממנחה קטנה והכא חצות

The Taz was not satisfied even with the Re'em's version: why does it mention "close," a superfluous expression which is not relevant to the answer – [it should say] only, "there, from *mincha ketana*, and here, midday."

והנה דרך הט"ז י"ל עפ"י מ"ש הר"ן ז"ל דמאי איריא כפשוטו דע"ש נמי במנהגא תליא מילתא כל היום קודם חצות דלאחר חצות בע"ש אסור הוה למכלליה עם ע"פ וה"ה לרש"י ה"מ למיתני בכלל מקום שנהגו לעשות מלאכה בע"פ עד חצות וע"ש וי"ט עד מ"ק עושין ומקום שנהגו שלא לעשות אין עושין וז"ש רש"י ולמה ליה למיתני חצות לאשמועינן הך דווק"א מלת דווק"א כפשטיה היה למכלליה מ"ש וי"ט עד מ"ק כו' ומשני דל"ד דזה סמוך כלומר מחצות מיד איסורא וע"ש ח"ש מט' עד חצי עשירית שרי מדינא רק מנהגא ואי הוה תנן עד מ"ק ה"א סמוך ח"ש נמי אסור (אבל הב"ח הבין מלת דווק"א כאילו אמר הך דווק"א יע"ש)

Now, the Taz's way can be explained according to what the Ran (z"l) wrote: "why specifically" is in its plain sense – on Erev Shabbos too the matter depends on custom all day before midday, since after midday on Erev Shabbos it is forbidden; it should have included it with Erev Pesach. The same applies according to Rashi: it could have taught together, "a place where they were accustomed to do melacha on Erev Pesach until midday, and on Erev Shabbos and Yom Tov until *mincha ketana*, they work; and a place where they were accustomed not to work, they do not work." This is what Rashi wrote: "and why did he need to teach 'midday,' to inform us of this inference (דווק"א?)" – the word דווק"א in its plain sense: it should have included Erev Shabbos and Yom Tov until *mincha ketana* etc. It answers that it is not comparable: here, "close" – that is, immediately from midday – is forbidden; and on Erev Shabbos, the half hour from nine until half of the tenth is permitted by law, only [forbidden by] custom; and if it had been taught "until *mincha ketana*," I would have said that half an hour close is also forbidden. (But the Bach understood the word דווק"א as if it said "this specifically"; see there.)

אבל שיטת הטור א"ש טובא כפי' הר"ן ז"ל דתרווייהו עד מ"ג א"כ שוה ע"ש ממש לע"פ קודם חצות במנהגא תליא מילתא ומיהו לאידך תירוצא סימן ברכה אין רואה שמותי לא משמתינן לא שייך מנהגא קודם חצות בע"ש וע"ט דלאחר חצות לא חמיר איסורא דאין משמתין ליה קודם חצות מנהגא והוה מנהג בטעות ואין צריך התרה ועיין ר"ן. ושם משמע כמ"ש דבע"ש איסורא איכא ממנחה ולמעלה רק דלא משמתינן אבל הט"ז כתב דאיסורא נמי ליכא כ"א דאין רואה סימן ברכה.

But the Tur's approach fits very well with the Ran's (z"l) explanation, that both are until *mincha gedola*; if so, Erev Shabbos is exactly equal to Erev Pesach – before midday the matter depends on custom. However, according to the other answer – "he does not see a sign of blessing, [but] we do not place him in *shamta*" – custom before midday does not apply on Erev Shabbos and Erev Yom Tov, since after midday the prohibition is not severe, as they do not place him in *shamta*; [so] before midday a custom would be a mistaken custom and requires no annulment. See the Ran. There it is implied, as I wrote, that on Erev Shabbos there is a prohibition from Mincha onward, only that we do not place him in *shamta*. But the Taz wrote that there is also no prohibition, only that he does not see a sign of blessing.

והנה בש"ע סתם י"א מנחה גדולה י"א מ"ק ולא פירש אי סמוך שרי וי"ל לתי' הב' התם לא משמתין י"ל דלפ"ז סמוך אסור דכל סמוך כזמנה דמי כו' ובהכרח לפסוק כתי' הב' דלתי' א' י"ל מנהגא בע"ש ולא מצינו כן בשום פוסק שיאמר בע"ש קודם חצות מנהגא ש"מ כתי'

הב' וזה נראה דעת המרדכי שכתב בע"ש מ"ג חצי היום עא"ר אות בג"ד ולמ"ש א"ש ומשמע דגוערין בו ומבטלין אותו בע"כ יע"ש דאין רואה סימן ברכה איסורא נמי איכא ויש אין רואה סימן ברכה לאו איסורא וכאן איסורא איכא דאל"כ הי"ל התם אין רואה והכא איסורא איכא. ועמ"א ושם יבואר אי"ה: עיין אות ב' אי"ה:

Now, in the Shulchan Aruch he stated simply, "some say *mincha gedola*, some say *mincha ketana*," and did not explain whether "close" is permitted. One can say [it follows] the second answer – "there, we do not place him in *shamta*" – and one can say that according to this, "close" is forbidden, since anything close is like its time etc. Of necessity one must rule like the second answer, since according to the first answer one would say there is a custom on Erev Shabbos, and we have not found any posek who says that on Erev Shabbos before midday [it depends on] custom; this shows [the halacha is] like the second answer. This appears to be the opinion of the Mordechai, who wrote: on Erev Shabbos, *mincha gedola*, half the day. See the Eliyahu Rabba, os בג"ד; according to what I wrote it fits well. It is implied that they rebuke him and stop him against his will; see there – that [with] "he does not see a sign of blessing" there is also a prohibition. There is [a case of] "he does not see a sign of blessing" that is not a prohibition, but here there is a prohibition; for otherwise it should have said, "there he does not see [a sign of blessing], and here there is a prohibition." See the Magen Avraham; there it will be explained, with Hashem's help. See os 2, with Hashem's help.

MISHNA BERURA ON THIS SEIF

MISHNA BERURA 1 משנה ברורה (א)

העושה מלאכה – ופרקמטיא שרי ומ"מ משמע מהגמרא דזמן סגירת החנויות הוא קודם זמן הדלקת הנרות ועיין בבה"ל ולקמן בסימן רנ"ו במ"ב סק"א:

One who does melacha. Business is permitted. Nevertheless, it is implied from the Gemara that the time for closing the shops is before the time of lighting the candles; see the Biur Halacha, and below in siman 256, Mishna Berura s"k 1.

MISHNA BERURA 2 משנה ברורה (ב)

סימן ברכה – מאותה מלאכה שאף שירויח במקום זה יפסיד במקום אחר:

A sign of blessing. From that melacha: even though he will profit in this place, he will lose in another place.

MISHNA BERURA 3 משנה ברורה (ג)

מנחה גדולה – היינו בשש ומחצה ומנחה קטנה היינו תשע ומחצה והסומך על המקילין לא הפסיד והשעות הם זמניות וכ"ז בעושה מלאכת עצמו אבל פועל הנשכר אצל בעה"ב בסתם איתא בחו"מ סימן של"א דזמנו הוא סמוך לשקיעת החמה ורק כדי שילך לביתו למלאות לו חבית מים ולצלות לו דג קטן ולהדליק לו את הנר אם לא במקום שיש מנהג קבוע לפסוק מקודם ועיין במ"א ובס' תו"ש:

Mincha gedola. That is, at six and a half [hours]; and *mincha ketana* is at nine and a half. One who relies on the lenient ones has not lost. The hours are proportional. All this is with one who does his own work; but a worker hired by an employer without specification – it is stated in Choshen Mishpat siman 331 that his time is close to sunset, only [leaving time] so that he can go home to fill himself a barrel of water, roast himself a small fish, and light the candle for himself – unless in a place where there is a fixed custom to stop earlier. See the Magen Avraham and the Sefer Tosefos Shabbos.

MISHNA BERURA 4 משנה ברורה (ד)

דרך עראי – היינו אפילו בשכר:

In a casual way. That is, even for payment.

Seif 2 סעיף ב

BASIS OF THIS SEIF Erev Shabbos | Kavod Shabbos

- Repairing one's clothes and utensils for Shabbos is permitted all day, and so is writing sefarim for oneself as part of one's learning (the seif). Writing for another for pay is forbidden, and one should reduce one's learning somewhat to prepare for Shabbos (Rama).
- The commentaries compare these rules to the work permitted on Chol HaMoed (MA 5; MB 5).

Melacha: None – these are Erev Shabbos rules.

Repairing Clothes

HALACHA 251:2

The **Biur Halacha** (ד"ה לתקן בגדיו) writes that the same applies to sewing new clothes (Eliyahu Rabba, Pri Megadim), even though it is a full melacha forbidden on Erev Pesach (siman 468). For Erev Shabbos we are lenient, and from their words it seems that even professional sewing is permitted. The Gra brings the source from Chol HaMoed, where only amateur work is permitted, implying he holds the same here, but the other Acharonim do not imply this.

Without Payment

The **Taz** (2) writes that if the worker is poor and wants to use the payment for Shabbos, it is permitted, since even on Chol HaMoed all melachos are permitted for that (siman 542). The **Mishna Berura** (5) adds **6)**:

- If he is poor and has nothing to eat, it is permitted. All melachos permitted on Erev Pesach and Chol HaMoed are permitted on Erev Shabbos (Acharonim).
- Even if he has bread but needs money for Shabbos – to delight in it with meat, fish and good drinks – one can say it is permitted.
- Otherwise one should be very careful, since several Poskim imply that besides the lack of blessing, there is a concern of a prohibition (Pri Megadim).

The **Biur Halacha** (ד"ה ואינו נוטל) adds two more possible leniencies:

- If he sees that if he does not deliver the garment for Shabbos, the customer will pay him less than the usual price, or will not give him work in the future, it may be considered a *davar ha'aved*, as on Chol HaMoed (539:13).
- The Ri holds that on Erev Pesach, if one began in the permitted time, he may finish even after midday. Most disagree, and the Rama rules against him (468:9). But on Erev Shabbos, which is more lenient, in a time of pressure, one may rely on the Ri and finish even after *mincha ketana*, even for payment.

He concludes: although we have found many leniencies here, a G-d-fearing person should push himself *l'chatchila* not to reach the point of needing to work until close to sunset, unless he is in great need.

Writing Sefarim

Writing for a friend for payment **7)** is forbidden. Therefore a *sofer* of *Sifrei Torah*, *tefillin* and *mezuzos* should be careful not to write for payment, unless he needs a mezuza, Sefer Torah or tefillin now, or he is pressed for his Shabbos needs (MB 6).

A Haircut

A haircut is permitted **8)** even from a Jewish barber, even if he takes payment. It is recognizable to all that the person having the haircut is doing it for Shabbos, so it is permitted. It is different from repairing clothes, which is forbidden for payment, since there the work is not recognizable as being for Shabbos. Therefore one should be careful about cutting a non-Jew's hair (MA 5, MB 7).

The **Magen Avraham** (5) brings the Kol Bo, who permits only amateur work, no worse than Chol HaMoed, where amateur sewing is permitted. The Bais Yosef writes that the custom is to permit even professional work, and wherever the halacha is unclear, follow the custom. The Magen Avraham explains the reason for the heter: since it is for Shabbos, it is permitted even for payment. On Erev Pesach, however, even a haircut is forbidden (siman

468). The **Biur Halacha** (ד"ה ומסתפרין) brings the Gra, who strongly questions this, and according to him one should be careful from *mincha* onward even for free, since a haircut is always professional work.

The Arizal

The **Magen Avraham** (5) brings that the Arizal was careful not to have a haircut after *mincha*, even on Erev Shabbos. The **Mishna Berura** (7) explains: "after *mincha*" means after the time of *mincha* arrived, not after he davened *mincha*. "Even on Erev Shabbos" means not only on a weekday, before davening *mincha*, but even for Shabbos, which is also a mitzvah, he would not have a haircut after the time of *mincha* arrived before he davened (siman 232). Those who are not careful, even after *mincha ketana* arrives, can rely on the fact that people are called to shul, so there is no concern that he will miss the time of *tefilla*.

Peyos

In connection with haircuts, the **Biur Halacha** (ד"ה אפילו מספר ישראל) warns about a matter in which some people stumble: *hakafas pe'as harosh*, which is a Torah prohibition (Yoreh De'ah 181).

- The *pe'ah* extends from opposite the hair on the forehead down to below the ear, where the lower jaw separates. The full width of the hair in this place is the *pe'ah*; below it begins the *pe'as hazakan*.
- Some hold *pe'as harosh* is stricter than *pe'as hazakan*, and one transgresses even when it is removed with scissors close to the skin, like a razor.
- Both the one who cuts and the one whose hair is cut transgress.
- Some young men have the barber shave the hair near the ear, mistakenly thinking that only what we call *peyos* is the *pe'ah*. This is a full Torah prohibition according to all. Therefore even if the barber is a non-Jew, one must warn him not to touch that place at all.
- Even in a bathhouse one may tell the barber to stop, if he will listen, since one may speak there in order to prevent a prohibition (siman 84).

Reducing One's Learning

A person should reduce his learning **9)** somewhat on Erev Shabbos. Therefore in some places a *yeshiva* is not held on Erev Shabbos (MA 6, MB 8).

The **Magen Avraham** (6) and **Mishna Berura** (8) bring the Seder HaYom: if one regularly learns a fixed amount, or teaches the public, he should not neglect it. Learning Rashi on the *parsha* is considered a fixed amount, so we do not decree lest he continue until night. If he will not find things to buy later, he should not set his learning in the morning (see Biur Halacha in siman 250).

The purpose is **10)** to prepare for Shabbos. If he has a servant who prepares for him, he need not reduce, and certainly if he prepared on Thursday he may learn as usual. Even so, he must prepare something in honor of Shabbos himself, even if he has many servants, as in siman 250 (MB 9).

The **Biur Halacha** (ד"ה ויש לאדם) notes that the Rama cites the Yerushalmi, but one who examines it, and the Midrash brought in the Darchei Moshe, will see that they speak about Shabbos, not Erev Shabbos, and the Midrash must be read as "from *mincha* onward." Nevertheless, the Rama's din is true, as we find in the Gemora that the Amoraim themselves interrupted their learning to prepare for Shabbos.

SHULCHAN ARUCH & MEFORSHIM

לתקן בגדיו וכליו לצורך שבת, מותר כל היום:

הגה וה"ה בגדי חבירו אם הוא לצורך שבת ואינו נוטל עליו שכר ב"י

והוא הדין למי שכותב ספרים לעצמו דרך לימודו:

הגה אבל אסור לכתוב לחבירו בשכר (מרדכי פ' מקום שנהגו) ומסתפרין כל היום, אפי' מספר ישראל. (כל בו וב"י) ויש לאדם למעט קצת בלמודו בע"ש, כדי שיכין צרכי שבת (ש"ג פי"ו דשבת ירוש' פ"ק דתענית):

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2 To repair his clothes and utensils for Shabbos is permitted all day.

RAMA *The same applies to his friend's clothes, if it is for Shabbos* **6)** *and he does not take payment for it* [Bais Yosef].

The same applies to one who writes sefarim for himself as part of his learning.

RAMA *But it is forbidden* **7)** *to write for his friend for payment* [Mordechai]. *One may have a haircut all day,* **8)** *even from a Jewish barber* [Kol Bo, Bais Yosef]. **9)** *A person should reduce his learning somewhat on Erev Shabbos* **10)** *in order to prepare for Shabbos* [ש"ג, Yerushalmi].

COMMENTARIES, IN ORDER OF THE TEXT

And the same applies to his fellow's clothing **וה"ה בגדי חבירו אם הוא לצורך שבת ואינו**

TAZ 2 **ט"ז (ב)**

וה"ה בגדי חבירו. נ"ל אם הוא עני ורוצה להוציא השכר שיטול לצורך שבת דמותר דהא אפי' בח"ה מותרים כל המלאכות כו' עי"ז כמ"ש סי' תקמ"ב:

And the same applies to his fellow's clothing. It seems to me that if he is poor and wants to spend the payment he takes for the needs of Shabbos, it is permitted; for even on Chol HaMoed all melachos are permitted etc. in this way, as written in siman 542.

PRI MEGADIM (MISHBETZOS ZAHAV) 2 on Taz 2 **פרי מגדים – משבצות זהב (ב)**

וה"ה בגדי חבירו עט"ז בסימן תקמ"ב (ט"ס תקס"ב) ועט"ז שם אות ב' דאם אין לו מה יאכל מותר ליקח שכר הרבה ומשמע הא כל שיש לו לחם ומים אסור ועמ"א שם וי"ל בשבת דמוזהר על עונג שבת אפילו יש לו מים ולחם כל שאין לו לענגו בבשר ודגים שרי

And the same applies to his fellow's clothing – on the Taz. In siman 542 (ט"ס תקס"ב). See the Taz there, os 2: if he has nothing to eat, it is permitted to take much payment; and it is implied that whenever he has bread and water, it is forbidden. See the Magen Avraham there. One can say that with Shabbos, where one is commanded about *oneg Shabbos*, even if he has water and bread, whenever he does not have [the means] to enjoy it with meat and fish, it is permitted.

ומזה נתפשט המנהג לעשות מלאכה בע"ש החייטים עד סמוך לשקיעת החמה אע"ג דמשמע דאיסור יש וגוערין בו ומפרישין אותו בע"כ כמ"ש באות א' וכ"מ בהר"ב בהג"ה אבל אסור לכתוב לחבירו בשכר משמע איסורא איכא

From this the custom spread for tailors to do melacha on Erev Shabbos until close to sunset, even though it is implied that there is a prohibition, and they rebuke him and separate him [from it] against his will, as I wrote in os 1; and so it is implied in the Rav [the Rama] in the gloss, "but it is forbidden to write for his fellow for payment" – implying there is a prohibition.

אלא דאם הוא עני ולא הכין כל צרכי שבת משקין ומבושלים טובים כפי הראוי לו שרי אבל הכין ודאי אסור וגוערין ומפרישין בע"כ ממ"ק ואילך דאיסורא דרבנן להקל וכפי הכלל י"א וי"א הלכה כי"א בתרא ע"ין בכללי או"ח. ועמ"א אות ה' בזה ואי"ה שם יבואר עוד:

But if he is poor and has not prepared all the needs of Shabbos – drinks and good cooked foods, as befits him – it is permitted; but [if] he prepared, it is certainly forbidden, and they rebuke and separate [him] against his will from *mincha ketana* onward. For a

Rabbinic prohibition [is decided] leniently, and according to the rule of "some say ... and some say," the halacha follows the latter "some say"; see the Kelalei Issur V'Heter. See Magen Avraham os 5 on this; with Hashem's help it will be explained further there.

מספר ישראל. (כל בו וב"י) ויש לאדם למעט *[Even] a Jewish barber*

MAGEN AVRAHAM 5 **מגן אברהם (ה)**

מספר ישראל. דוקא מעשה הדיוט דלא גרע מח"ה דאמרינן הדיוט תופר כדרכו (כל בו) והעולם נהגו היתר אף במעשה אומן, וכל מקום שהלכה רופפת בידך הלך אחר המנהג עכ"ל ב"י, ונ"ל טעם ההיתר כיון שהיא לצורך שבת שרי אפי' נוטל שכר ואף על גב דבתיקון בגדים אסור ליטול שכר אפי' לצורך שבת שאני תספורת דניכר לכל שהי' צורך שבת אבל בע"פ אסור אפי' תספורת כמ"ש סי' תס"ח,

[Even] a Jewish barber. Specifically unskilled work, since it is no worse than Chol HaMoed, where we say that an unskilled person sews in his usual way (Kol Bo). People are accustomed to permit even skilled work; and wherever the halacha is uncertain to you, follow the custom – end of the Bais Yosef's language. It seems to me that the reason for the heter is that since it is for the needs of Shabbos, it is permitted even [if] he takes payment. Even though with repairing clothing it is forbidden to take payment even for the needs of Shabbos, a haircut is different, since it is evident to all that it was for the needs of Shabbos. But on Erev Pesach even a haircut is forbidden, as written in siman 468.

מיהו לגלח לעכו"ם אפי' מעשה הדיוט אסור עסי' תקל"א ס"ק ח' דהא בח"ה לא שרי מלאכת הדיוט אלא לצורך המועד כמ"ש בסימן תקמ"א מיהו י"ל דבע"ש קיל טפי ושרי מלאכת הדיוט ועסי' תס"ח ס"ה דמשמע דמלאכת אומן הוא דאי מלאכת הדיוט הוא אפי' במועד שרי לצורך המועד ולדעת הכלבו אפילו בשכר כמ"ש הב"י סימן תקמ"א בשמו ודוחק לומר דבסי' תס"ח מיירי לגלח למי שאינו צורך המועד דבכל הפוסקים איתא דמיירי לצורך המועד

However, to shave a non-Jew, even unskilled work is forbidden – see siman 531, s"k 8 – since on Chol HaMoed unskilled work is permitted only for the needs of the Moed, as written in siman 541. However, one can say that Erev Shabbos is more lenient, and unskilled work is permitted. See siman 468:5: it is implied that [a haircut] is skilled work, for if it were unskilled work, even on the Moed it would be permitted for the needs of the Moed – and according to the Kol Bo even for payment, as the Bais Yosef wrote in siman 541 in his name. It is strained to say that siman 468 speaks of shaving one who is not for the needs of the Moed, since in all the poskim it is stated that it speaks of [shaving] for the needs of the Moed.

וא"כ כל מלאכות המותרו' בח"ה מותרו' בע"ש והכי מסתבר' אפילו נוטל שכר דבחנם פשיטא דשרי תספורת דהא צורך שבת הוא וכ"כ בד"מ תקמ"ה ס"ה, ובכונות כתב שהאר"י היה נזהר שלא לגלח אחר מנחה אפילו בע"ש ועסי' רל"ב:

If so, all melachos permitted on Chol HaMoed are permitted on Erev Shabbos; and this is reasonable even [if] he takes payment – for without payment it is obvious that a haircut is permitted, since it is for the needs of Shabbos. So wrote the Darchei Moshe, 545, [os] 5. In the Kavanos he wrote that the Arizal was careful not to shave after Mincha, even on Erev Shabbos; and see siman 232.

PRI MEGADIM (ESHEL AVRAHAM) 5 on Magen Avraham 5 **פרי מגדים – אשל אברהם (ה)**

מספר ישראל עמ"א ועא"ר אות ט' ותס"ח אות זיין דבע"פ חמור דמשמתין מלאכה גמורה אסור לצורך המועד כ"א תיקו"ן בגדיו אבל בע"ש ל"ד לתק"ן ה"ה מלאכה גמורה שרי לצורך שבת וא"ש דברי המ"א בתספורת דאף בשכר מותר:

A Jewish barber – on the Magen Avraham. See the Eliyahu Rabba, os 9, and 468, os 7: on Erev Pesach, which is severe, since they place [violators] in *shamta*, complete melacha is forbidden [even] for the needs of the Moed, except repairing his clothing; but on Erev Shabbos "repairing" is not specific – the same applies that complete melacha is permitted for the needs of Shabbos. The words of the Magen Avraham regarding a haircut, that even for payment it is permitted, fit well.

מ"ש בכוונות אפי' ע"ש ל"מ בחול קודם שהתפלל מנחה אלא אפי' לצורך שבת לא היה מגלח אחר שהגיע זמן מנחה ולא התפלל ועסי' רל"ב והעולם שאינן נזהרים אף אחר מ"ק י"ל כמ"ש ברל"ב אות ג' דאם יש לו ב' וג' זוג אפשר שרי או שקוראין לבהכ"נ לא חיישינן:

What he wrote, [in the name of] the Kavanos, "even on Erev Shabbos": not only on a weekday before he davened Mincha, but even for the needs of Shabbos he would not shave after the time of Mincha arrived and he had not davened; and see siman 232. As for people who are not careful even after *mincha ketana* – one can say, as written in 232, os 3, that if he has two or three pairs [of scissors], possibly it is permitted; or [that] since they call [people] to shul we are not concerned.

RABBI AKIVA EIGER on Magen Avraham 5 **רבי עקיבא איגר**

שם ס"ק ה' שלא לגלח אחר מנחה. אחר זמן מנחה:

There, s"k 5: "Not to shave after Mincha." [That is,] after the time of Mincha.

RABBI AKIVA EIGER on Magen Avraham 5 **רבי עקיבא איגר**

שם וע' סי' רל''ב. ע' תשו' מהרם מטראני ססי' רס"ז:

There: "And see siman 232." See the teshuvos of the Maharam of Trani (the Mabit), end of siman 267.

In his learning on Erev Shabbos **ויש לאדם למעט קצת בלמודו בע"ש**

MAGEN AVRAHAM 6 **מגן אברהם (ו)**

בלימודו בע''ש. לכן אין קובעין ישיבה בקונסטנטינא בע"ש (כ"ה)

In his learning on Erev Shabbos. Therefore they do not hold yeshiva in Constantinople on Erev Shabbos (Knesses HaGedola).

ובסדה"י כתוב אם רגיל ללמוד דבר שיש לו קצבה או שלומד עם רבים אל יבטלנו ולימוד הישיבה מקרי דבר שאין לו קצבה שרגילין לפלפל אם לא פירש"י על הסדרא שרי ואם לא ימצא אח"כ לקנות אזי לא יקבע הלימוד בבקר ואם לא ימצא לקנות אחר התפלה אזי יקנה ואח"כ יתפלל שזו מצוה עוברת וגם היא דאורייתא ובלבד שיקרא ק"ש קודם, ואם הציבור מתפללין לא יפרוש מהם ואם הכין ביום ה' יוכל ללמוד כדרכו ע"כ:

In the Seder HaYom it is written: if he is accustomed to learn something that has a fixed measure, or he learns with the public, he should not cancel it. The yeshiva's learning is called something without a fixed measure, since they are accustomed to engage in *pilpul*; unless [it is] Rashi on the parsha, [which] is permitted. If he will not find [what] to buy afterward, then he should not set his learning in the morning; and if he will not find [what] to buy after davening, then he should buy and afterward daven, since this is a passing mitzva, and also Torah law – provided he reads Krias Shema first. If the congregation is davening, he should not separate from them. If he prepared on Thursday, he may learn as usual. End quote.

PRI MEGADIM (ESHEL AVRAHAM) 6 on Magen Avraham 6 **פרי מגדים - אשל אברהם (ו)**

בלימודו עמ"א מ"ש דהיא דאוריי' עמ"א בסי' רמ"ח במ"א אות ו"ו מזה דמשמע ג' סעודות בשבת אסמכתא הוה יע"ש:

In his learning – on the Magen Avraham. What he wrote, that it is Torah law – see the Magen Avraham in siman 248, os 6, on this, where it is implied that the three meals on Shabbos are an *asmachta*; see there.

MISHNA BERURA ON THIS SEIF

MISHNA BERURA 5 **משנה ברורה (ה)**

ואינו נוטל וכו' – ואם הוא עני שאין לו מה יאכל שרי כדלקמן ס"ס תקמ"ב לענין חוה"מ וה"ה כל המלאכות המותרות בע"פ ובחוה"מ מותרות בע"ש [אחרונים] ואפילו יש לו לחם רק הוא צריך לצרכי שבת לענגו בבשר ודגים ומשקין טובים ג"כ יש לומר דשרי אבל בלא"ה יש ליזהר בזה מאד כי משמע מכמה פוסקים דמלבד דאין רואה סימן ברכה יש חשש איסור בזה [פמ"ג]:

And he does not take etc. If he is poor and has nothing to eat, it is permitted, as below, end of siman 542, regarding Chol HaMoed; and the same applies that all melachos permitted on Erev Pesach and on Chol HaMoed are permitted on Erev Shabbos [Acharonim]. Even if he has bread, but he needs [money] for the needs of Shabbos – to enjoy it with meat, fish and good drinks – one can also say it is permitted. But otherwise one should be very careful about this, since it is implied from several poskim that besides not seeing a sign of blessing, there is a concern of prohibition in this [Pri Megadim].

MISHNA BERURA 6 **משנה ברורה (ו)**

לכתוב לחבירו בשכר – לכן יזהר ג"כ הכותב סת"ם שלא יכתוב בשכר אם לא שהוא צריך עתה למזוזה או ס"ת או תפלין או שהוא דחוק לצרכי שבת וכנ"ל:

To write for his fellow for payment. Therefore a scribe of *sifrei Torah*, tefillin and mezuzos should also be careful not to write for payment, unless [the customer] now needs a mezuza, sefer Torah or tefillin, or he is short of [money] for the needs of Shabbos, as above.

MISHNA BERURA 7 **משנה ברורה (ז)**

מספר ישראל – היינו אפילו אם הספר נוטל שכר והטעם נראה לכל שעושה המסתפר לצורך שבת ולכן שרי ולא דמי לתיקון בגדים שאסור בנטילת שכר דהתם אין ניכר בפעולה שהוא לצורך שבת משא"כ בזה וע"כ יש ליזהר מלגלח לא"י.

Even a Jewish barber. That is, even if the barber takes payment. The reason is that it is evident to all that the one getting a haircut does it for the needs of Shabbos; therefore it is permitted. It is not comparable to repairing clothing, which is forbidden with taking

payment, since there it is not evident from the action that it is for the needs of Shabbos, unlike here. Therefore one should be careful not to shave a non-Jew.

כתב המ"א שהאר"י ז"ל היה נזהר שלא לגלח אחר מנחה אפילו בע"ש וביארו כונתו דמ"ש אחר מנחה היינו אחר שהגיע זמן מנחה אבל לא מיירי שהתפלל מנחה והיינו דקאמר אפילו בע"ש דר"ל לא מיבעיא בחול קודם שהתפלל מנחה אלא אפילו לצורך שבת שהוא מצוה ג"כ לא היה מגלח אחר שהגיע זמן מנחה ולא התפלל והעולם שאינם נזהרים בזה אפילו אחר שהגיע זמן מנחה קטנה י"ל דכיון שקוראין לבהכ"נ לא חיישינן שיעבור עי"ז זמן התפלה:

The Magen Avraham wrote that the Arizal was careful not to shave after Mincha, even on Erev Shabbos. They explained his intent: "after Mincha" means after the time of Mincha arrived, but it does not speak of where he davened Mincha. That is why he said "even on Erev Shabbos": that is, not only on a weekday before he davened Mincha, but even for the needs of Shabbos, which is also a mitzva, he would not shave after the time of Mincha arrived and he had not davened. As for people who are not careful about this, even after the time of *mincha ketana* arrived – one can say that since they call [people] to shul, we are not concerned that through this the time of davening will pass.

MISHNA BERURA 8 משנה ברורה (ח)

ויש לאדם וכו' – לכן אין קובעין ישיבה באיזה מקומת בע"ש ובספר סדר היום כתב דאם רגיל ללמוד דבר שיש לו קצבה או שלומד עם רבים אל יבטלנו ופירש"י על הסדרא מקרי דבר שיש לו קצבה וע"כ לא גזרינן שמא ימשוך עד הלילה ואם לא ימצא אח"כ לקנות אזי לא יקבע הלימוד בבוקר ועיין לעיל בסי' ר"נ שהארכנו בזה בבה"ל:

A person should etc. Therefore in some places they do not hold yeshiva on Erev Shabbos. In the Sefer Seder HaYom he wrote that if he is accustomed to learn something that has a fixed measure, or he learns with the public, he should not cancel it. Rashi on the parsha is called something that has a fixed measure, and therefore we do not decree lest he extend it until night. If he will not find [what] to buy afterward, then he should not set his learning in the morning. See above, siman 250, where we elaborated on this in the Biur Halacha.

MISHNA BERURA 9 משנה ברורה (ט)

כדי שיכין – ואם יש לו משרת שיכין בשבילו אין צריך וכ"ש אם הכין ביום ה' בודאי יוכל ללמוד כדרכו. מיהו מ"מ צריך לתקן איזה דבר לכבוד שבת ואפילו יש לו כמה עבדים כמ"ש בסימן ר"נ:

So that he prepare. If he has a servant who will prepare for him, he need not; and all the more so if he prepared on Thursday, he may certainly learn as usual. However, nevertheless he must prepare something in honor of Shabbos [himself], even if he has several servants, as written in siman 250.